

2.	<u>30-2024-01438047-CU-BC-WJC</u> Scarcella vs. Witherill	Before the Court are two (2) motions: Motion to Compel Further Responses for Request for Production (ROA 437) and Motion to Compel Further Responses for Request for Production (ROA 446). On May 18, 2026, Plaintiff Chris Scarcella (“Plaintiff Scarcella”) and Plaintiff Melissa Edwards (“Plaintiff Edwards”) (collectively “Plaintiffs”) filed amended motions, separate statements, and a declaration against Defendant Brittni Witherill (“Defendant Witherill”) and Defendant Alex Antonescu (“Defendant Antonescu”) (collectively “Defendants”). <i>See</i> ROAs 383, 387, 397, 398, 400. On May 29, 2026, Plaintiffs filed further supplemental amended motions, which narrowed the scope of issues before the Court. <i>See</i> ROAs 437, 441, 445, 446, 435, 442. On June 5, 2026, Defendants filed their Opposition and Declaration to Plaintiffs’ Motions. ROAs 461, 463. On June 8, 2026, Plaintiffs filed their Reply to Defendants’ Opposition. ROA 467. Defendants argue that Plaintiffs’ motions are moot and request that the Court deny Plaintiffs’ Motions and impose sanctions in the amount of \$3,000 against Plaintiffs for misuse of the discovery process. ROA 461. Plaintiffs request that the Court grant their Motions, deny the sanctions requested by Defendants, and impose sanctions against Defendants in the amount of \$2,000. ROA 446. I. Untimely Oppositions The Court has broad discretion to accept or reject late filed papers filed beyond the deadline without a prior court order finding good cause for the late submission. Cal. Rules of Court, Rule 3.1300(d); <i>see also Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i>, 2 Cal. App. 5th 252, 262–263 (2016); <i>Samaniego v. Empire Today LLC</i>, 205 Cal. App. 4th 1138, 1146 (2012). Here, Defendants’ Opposition was due no later than June 1,
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2026. ROA 365. Defendants filed their Opposition four (4) days late on June 5, 2026. ROA 461. The Court exercises its discretion to consider the tardy Opposition in the interest of resolving the current disputes. However, the Court admonishes Defendants' counsel for their inability to follow the briefing schedule as ORDERED.

II. Unauthorized Filings

The Court's April 28, 2026, Minute Order expressly instructed that no other filings were allowed absent leave of court. ROA 365. Nevertheless, Plaintiffs, without leave of court, filed several supplemental amended motions, declarations, and statements. *See* ROAs 437, 435, 441, 442, 445, and 446. While unauthorized, the additional filings did serve to narrow the issues before the Court. The Court exercises its discretion to consider the unauthorized filings *only* for the sake of efficiency and only after finding no prejudice against the Defendants. The Court admonishes Plaintiffs for failing to follow the Minute Order.

III. Motion to Compel Further Responses to Requests for Production

Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc Code § 2031.210(a).

An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220.

Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc.

	Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that “the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> Under California Code of Civil Procedure Section 2031.310, the demanding party may move for an order compelling a further response to the demand if the demanding party deems that any statement of compliance with the demand is incomplete; a representation of inability to comply is inadequate, incomplete, or evasive; or an objection is without merit or too general. Cal. Civ. Proc. Code § 2031.310(a)(1), (2), (3). At the outset, the Court notes that Defendant Witherill’s and Defendant Antonescu’s responses to the Requests for Production (“RFP”) are identical and the Court will analyze them together. <i>See</i> ROAs 437, 446. Plaintiffs argue that the responses remain deficient. ROA 467. Defendants argue that the Motions are moot because their June 1, 2026, supplementation cured all deficiencies. ROA 461. a. RFP No. 4 Upon review, Defendants’ response to RFP No. 4 is not code compliant. The response fails to specify whether the inability to produce drafts, historical account dashboards, IP edit logs, administrative platform communication
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	threads, or alternative version histories is because the particular items or categories have never existed, have been destroyed, have been lost, misplaced, or stolen, or have never been, or are no longer, in the possession, custody, or control of the responding party, as required by Code of Civil Procedure section 2031.230. <i>See</i> ROA 472. In addition, while the response identifies certain third-party platforms that may have possession, custody, or control of the requested material, it fails to provide the addresses of any such entity. <i>Id.</i> Finally, the response is not fully responsive to the request. <i>Id.</i> Defendants produced a screenshot of their message inbox, which merely reflects the existence of communication threads, but does not include the underlying communications themselves. <i>Id.</i> Accordingly, a further response to RFP No. 4 is warranted. b. RFP No. 7 Upon review, Defendants' response to RFP No. 7 is not code compliant. The response fails to specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party, as required by Code of Civil Procedure section 2031.230. <i>See</i> ROA 472. Moreover, the response fails to indicate whether Defendants know or believe that any individual or entity has possession, custody, or control of the requested materials, and if so, it does not identify the name and address of such individual or entity. <i>Id.</i> Finally, the response is not responsive to the request. <i>Id.</i> Defendants produced documents reflecting listing screenshots, listing parameters, and prospective tenant inquiries; however, that production does not include the communications themselves, which are the subject of the request. <i>Id.</i> Accordingly, a further response to RFP No. 7 is warranted.
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	c. RFP No. 9 Upon review, this response is not code compliant because it fails to specify whether the inability to produce metadata that Plaintiffs requested is because the metadata item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party, as required by Code of Civil Procedure section 2031.230. <i>See</i> ROA 472. In addition, while the response suggests that certain “third-party vendors” may have possession, custody, or control of the requested material, it fails to identify the name or address of any such individual or entity. <i>Id.</i> Accordingly, a further response to RFP No. 9 is warranted. d. RFP No. 14. Upon review, Defendants’ response is code compliant, and no further response is warranted. <i>See</i> ROA 472. The response constitutes a verified production of all responsive, non-privileged communications within Defendants’ possession, custody, or control. Additionally, the request is ambiguous in scope, as it seeks communications “relating to Plaintiffs or the Subject Property’s habitability,” without clearly delineating whether it refers to two distinct categories of communications or a single, overlapping category. <i>Id.</i> Plaintiffs’ interpretation of the request as encompassing a broader subject matter does not, on this record, establish that Defendants’ verified response is incomplete or evasive. IV. Mandatory Sanctions California Code of Civil Procedure Section 2031.310(h) provides that the court “shall impose a monetary sanction . . . against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . <i>unless</i> it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code
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	§ 2031.310(h). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions, an unsuccessful opponent to a motion to compel may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party's failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996); <i>see also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i>, 200 Cal. App. 4th at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Defendants’ lack of substantial justification, monetary sanctions are mandatory as to Plaintiff’s request. Additionally, the Court DENIES Defendants’ request for monetary sanctions. V. Amount of Sanctions Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 790 (2020) (compulsion, causation, and reasonableness). The most significant one for the Court’s analysis here is reasonableness. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone</i>, <i>supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code
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	§ 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). Having weighed the three (3) aforementioned principles, the Court exercises its discretion to reduce the requested sanctions amount of \$2,000 and impose sanctions in the amount of \$1,500 against the Defendants. Accordingly, the Court GRANTS IN PART Plaintiffs' Motion to Compel Further Responses for Request for Production (ROA 437) and Motion to Compel Further Responses for Request for Production (ROA 446). Defendants are ORDERED to provide a further response to RFP No. 4 detailing whether the inability to produce drafts, historical account dashboards, IP edit logs, administrative platform communication threads, or alternative version histories is because the particular items or categories item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. Additionally, the response shall include the addresses of the third-party platforms that may have possession, custody, or control of the requested material. Lastly, to the extent possible, Defendants shall provide the underlying communications themselves, and if unable, provide the proper explanation. Defendants shall provide a further response within 10 (ten) days of receiving notice. Defendants are ORDERED to provide a further response to RFP No. 7 detailing whether the particular item or category <i>has never existed</i>, or <i>has never been</i>, or is <i>no longer</i> in possession, custody, or control of the responding party. Additionally, the response shall include the addresses of the third party platforms that may have possession, custody, or control of the requested material. Lastly, to the extent possible, Defendants shall provide the underlying communications themselves, and if unable, provide the proper explanation. Defendants shall provide a further
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		response within 10 (ten) days of receiving notice. Defendants are ORDERED to provide a further response to RFP No. 9 detailing whether the metadata <i>has never existed</i>, or <i>has never been</i>, or is <i>no longer</i> in possession, custody, or control of the responding party. Additionally, the response shall include the addresses of the third party platforms that may have possession, custody, or control of the requested material. Defendants shall provide a further response within 10 (ten) days of receiving notice. Lastly, the Court IMPOSES sanctions in the amount of \$1,500 against Defendants, jointly and severally, due and payable to Chris Scarcella within thirty (30) days of receiving notice. Plaintiffs to give notice.
3.	<u>30-2023-01313697-CU-CR-NJC</u> Hughes vs. Orange County	Before the Court are the following six (6) motions brought by Defendants Jessica Capitulo (“Capitulo”) and Defendant County of Orange (“Orange”) (collectively, “Defendants”) against Plaintiff Albert Hughes III (“Plaintiff”): one Motion to Compel Further Responses to Requests for Production (“MF-RFP”), Set One, and Sanctions, brought by Capitulo; two (2) Motions to Compel Further Responses to Form Interrogatories (“MF-FROG”), set Two, and Sanctions, one brought by Orange, and one brought by Capitulo; two (2) Motions to Compel Further Responses to Special Interrogatories (“MF-SROG”), Set One, and Sanctions, one brought by Capitulo, and one brought by Orange; and one MF-FROG, Set One, and Sanctions, brought by Capitulo. ROAs 553, 556, 558, 562, 564, 566. The underlying controversy involves claims of violation of the Tom Bane Civil Rights Act, intentional infliction of emotional distress, negligence, conversion, trespass to chattels, and breach of contract resulting from a probate matter where the decedent’s cause of death is disputed. ROA 411. Orange seeks an order, pursuant to California Code of Civil Procedure Section 2030.290, compelling Plaintiff to provide